

## Board of Zoning Appeals, Dec. 18th, 2025

| Meeting Metadata | Details                                                                                               |
|------------------|-------------------------------------------------------------------------------------------------------|
| Video Recording  | <a href="https://www.youtube.com/watch?v=IdH83eL1fOY">https://www.youtube.com/watch?v=IdH83eL1fOY</a> |
| Publication Date | 2025-12-19T13:08:40Z                                                                                  |
| Target Category  | delaware_county                                                                                       |

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## Delaware-Muncie Metropolitan Board of Zoning Appeals Meeting Summary

**Meeting Date:** December [Year not explicitly stated, referenced as 2025 in minutes approval]

**Report Prepared By:** Expert Civic Analyst

### 2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular monthly meeting of the Delaware-Muncie Metropolitan Board of Zoning Appeals was called to order by the presiding officer.
- **Attendance:**
  - **Present (Quorum Achieved):** Mr. Billington, Ms. Brannon, Ms. Fritz, Ms. Kaiser, Ms. Knapp.
  - **Absent:** Mr. Ivy, Ms. Matthewson.
  - **Presiding Officer:** Identified via role as Chair/President.

### 3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance.

- **Approval of Minutes:**
    - *Discussion:* A motion was made and seconded to approve the September, October, and November meeting minutes collectively.
    - *Action & Vote Disposition:* Passed 4-0 with 1 abstention (Mr. Billington - Yes, Ms. Brannon - Yes, Ms. Kaiser - Yes, Ms. Knapp - Yes, Ms. Fritz - Abstain).
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## 4. Substantive Business & Board Action

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### 00:06:18 BZA 63-25: Use and Development Variances (217 South Cherry Street)

- **Sponsor / Presenter:** Rebecca Hannah / Ditch Lily Design LLC (P.O. Box 549, Muncie, IN).
- **Deliberation Summary:** The applicant requested a variance of use and associated development variances to convert an existing commercial building (former doctor's office) in a residential zone into three appointment-only business suites. The applicant noted existing curb parking (approx. 12-13 spots) and proposed two wall signs on the sides of the building. Board members reviewed the parking layout and noted zero neighborhood opposition.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved 4-0 (Mr. Billington - Yes, Ms. Brannon - Yes, Ms. Kaiser - Yes, Ms. Knapp - Yes, Ms. Fritz - Abstain).

### 00:10:32 BZA 64-25: Front & Rear Setback Variances (1600 East CR 900 North, Eaton)

- **Sponsor / Presenter:** Lindsey Young (1600 East CR 900 North, Eaton, IN).
- **Deliberation Summary:** The applicant requested decreased front and rear setbacks in a farm zone to construct a new replacement barn. The previous barn was destroyed by a tornado on April 2nd and deemed unrepairable by insurance. Moving the structure avoids high demolition costs for the ruined barn and utilizes accessible space.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved 5-0 with the conditions that the old barn be removed after the new barn is completed, and the new structure is restricted to personal use only (Mr. Billington - Yes, Ms. Brannon - Yes, Ms. Fritz - Yes, Ms. Kaiser - Yes, Ms. Knapp - Yes).

### 00:14:49 BZA 65-25: Use & Setback Variances for Tree Service Business (11801 West CR 400 South, Yorktown)

- **Sponsor / Presenter:** Steven S. Massey (11801 West CR 400 South, Yorktown, IN).
- **Deliberation Summary:** The applicant requested a use variance to operate a tree service business (including storage of work vehicles/equipment in a farm zone) alongside reduced east-side and rear setbacks. Lengthy debate ensued regarding property maintenance, large piles of tree debris, and frequent open burning. Staff noted the County Building

Commissioner (Tom Foutch) previously visited the site following complaints and issued a cease-and-order letter pending zoning approval.

- **Item-Specific Public Input:**

- **Ernest Westerfield (00:19:23):** Spoke in favor, noting the applicant keeps his property visually appealing and is a good neighbor.
- **Karen Westerfield (00:20:36):** Spoke in favor, citing the applicant as a respectable business owner who keeps things clean.
- **Jason Reed (00:21:55):** Spoke in opposition, expressing concerns over unmanaged equipment, constant burning/smoke hazards near cornfields, property values, and potential property line/setback encroachments.
- **Stephen Wright (00:25:44):** Spoke in opposition, detailing health hazards from continuous daily burning, smoke damage to vehicles/roofs, and neighborhood property decline.
- **Nick Melander (00:30:19):** Spoke in opposition, citing deterioration of property standards and commercial intrusion in a residential/agricultural area.
- **Derek Reed (00:32:55):** Spoke in opposition, highlighting constant summer burning and stagnant tree debris piles.
- **Dean Moody (00:34:10):** Spoke in opposition, emphasizing heavy smoke, ash, and the severe health/nuisance impacts of large burn pits.
- **Debbie Klingman (00:36:37):** Spoke in opposition, noting discrepancies on the application regarding commercial burning and negative impacts on neighborhood well-being.
- **Laura Wright (00:39:49):** Spoke in opposition as a real estate professional, citing interference with quiet enjoyment, health risks, fire code concerns near dry crops, and negative effects on property values.
- **Applicant Rebuttal (00:42:26):** Steven Massey stated he stopped commercial burning in July after fire department intervention, limits current fires to small personal firewood processing when wind permits, is actively removing inventory, and is open to installing arborvitae screening and adhering to a temporary timeline.

- **Action & Vote Disposition:**

- *Setback Variances:* Approved 5-0.
- *Business Use Variance:* Approved 4-1 with conditions (Ms. Knapp voted "No"): Granted for a 6-month temporary period only; non-transferable; applies to the applicant only; all business materials and vehicles must be screened from view; no operations after 8:00 p.m.; property must be cleared of accumulated business debris/trash; and **zero open burning** of off-site materials permitted on-site.

### **01:15:36 BZA 56-25: Pole Barn Height & Square Footage Variances (6320 North CR 600 West, Gaston)**

- **Sponsor / Presenter:** Andrew Collins (6320 North CR 600 West, Gaston, IN).

- **Deliberation Summary:** Continuation of a public hearing from the prior month regarding increased height and square footage (greater than the dwelling) for a new pole barn in a residential zone. The applicant was absent from the meeting. Staff outlined procedural options.
  - **Item-Specific Public Input:** None heard due to applicant's absence.
  - **Action & Vote Disposition:** Approved by Voice Vote to continue/table the hearing to the January 29, 2026 meeting.
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## 5. Open Public Comment / Citizen Forum

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- *Note: General public comments were integrated directly into the contested public hearing for BZA 65-25 (detailed in Section 4).*
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## 6. Administrative Updates & Adjournment

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- **Staff / Board Announcements:**
    - **Building Permits & Inspections:** Kylene reported 786 building permits (\$145,328.09 in fees) and 1,478 completed inspections through the end of November. Total land use cases stand at 113 (72 city, 41 county).
    - **2026 MPO Conference:** Delaware County will co-host the annual MPO conference with Kokomo and Anderson in August/September 2026; staff is actively seeking sponsors.
    - **Ordinance Revision:** Selection of a consulting firm to update the comprehensive zoning ordinance is expected by the end of the month.
    - **Special Recognition:** Fred Daniel, Senior Planner/Staff, was honored for his 30 years of dedicated service ahead of his official retirement on December 31st. He will transition into a part-time consulting role to assist the office.
  - **Adjournment:** Official motion made and seconded; meeting adjourned by voice vote.
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